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MOTION FOR SUMMARY

JUDGMENT

Motion filed on September 24, 2025.

MOVING PARTY: Defendants, Freedom Church SFV, Inc. and
International Church of the Foursquare Gospel

RESPONDING PARTY: Plaintiff, Cory Charles Caouette

NOTICE: OK.

RELIEF REQUESTED: Summary judgment on Plaintiff's Complaint.

RULING: Denied.

BACKGROUND

On June 3, 2022, Cory Charles Caouette (Plaintiff) filed his complaint against Freedom Church SFV, Inc. (Freedom Church) and Doe defendants, alleging causes of action for general negligence and premises liability. On December 5, 2024, Plaintiff filed an amendment to the Complaint substituting

International Church of the Foursquare Gospel (Foursquare) for Doe 1. On September 24, 2025, Defendants filed the present motion, a separate statement of undisputed material facts (SSUMF), and Austin's supporting declaration with exhibits. On August 20, 2026, Plaintiff filed an opposition, a responsive separate statement (RSSUMF), a compendium of evidence, and the declaration of his counsel, Robert L. Booker II. On August 28, 2026, Defendants filed a reply and evidentiary objections.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

The initial burden is on the moving party to make a prima facie showing that no triable issue of material fact exists. (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication meets that burden by showing that one or more elements of the cause of action cannot be established, or that a complete defense exists. (Code Civ. Proc., § 437c, subd. (p)(2).) The defendant must support the motion with evidence and may not simply point to the absence of evidence. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-850, 854 (*Aguilar*).)

Only if the defendant meets that initial burden does the burden shift to the plaintiff to show a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court must view the evidence in the light most favorable to the opposing party, liberally construe the opposing party's evidence, strictly scrutinize the moving party's evidence, and resolve evidentiary doubts or ambiguities in favor of the opposing party. (*Aguilar*, supra, 25 Cal.4th at pp. 843, 850.)

EVIDENTIARY OBJECTIONS

Written objections must identify the document and the exhibit, page, and line containing the challenged evidence and must quote or set forth the objectionable material. (Cal. Rules of Court, rule 3.1354(b).) Here,

Defendants' objections are framed as challenges to factual summaries in Plaintiff's RSSUMF rather than specific passages of the underlying evidence. (Objections, Nos. 1–12.) Because the RSSUMF is not itself evidence, Objections Nos. 1–12 are overruled as framed. The Court considers the cited evidence itself, not the separate statement's characterization of that evidence.

Defendants also challenge Oandasan's qualifications, foundation, and the propriety of his expert opinion in reply. (Reply, pp. 8, 10.) An expert must possess "special knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates." (Evid. Code, § 720, subd. (a).) The opinion must concern a subject "sufficiently beyond common experience that the opinion of an expert would assist the trier of fact[.]" (Id., § 801, subd. (a).) The rule that a trial court must liberally construe the evidence submitted in opposition to a summary judgment motion applies in ruling on both the admissibility of expert testimony and its sufficiency to create a triable issue of fact. (Garrett v. Howmedica Osteonics Corp. (2013) 214 Cal.App.4th 173, 189.) A reasoned explanation required in an expert declaration filed in opposition to a summary judgment motion need not be as detailed or extensive as that required in expert testimony presented in support of a summary judgment motion or at trial. (Ibid.)

Oandasan holds a bachelor's degree in civil engineering and Engineer-in-Training and Certified XL Tribometrist certifications. (Oandasan Decl., Ex. A.) His curriculum vitae identifies experience conducting safety inspections and investigating hundreds of properties, including premises-liability, slip-and-fall, trip-and-fall, and accident-reconstruction matters. (Oandasan Decl., Ex. A.) In forming his opinions, Oandasan reviewed six photographs taken shortly after the incident, Plaintiff's deposition transcripts, Volumes I and II, including exhibits, the deposition transcript of Edward Rodriguez, including exhibits, and the Summons and Complaint. (Oandasan Decl., Ex. B.) He states that his opinions are based on that evidence together with his education, background, professional training, and experience. (Oandasan Decl., ¶ 4.) In paragraph 6, he identifies the photographed sprinkler and rebar, estimates that each projects three or more inches above the planter surface, and explains how an unseen projection may interfere with a pedestrian's minimum toe clearance. (Oandasan Decl., ¶ 6.) He further explains that "[t]he tripping hazard presented by the rebar is greater because of the lack of contrast between the brown rebar and the brown dirt in the planter." (Oandasan Decl., ¶ 6.)

To the extent Defendants separately challenge Oandasan's qualifications, foundation, and the propriety of his limited physical tripping-hazard opinion, the challenge is overruled. His education, experience, and explanation provide a sufficient foundation for the opinion. (Oandasan Decl., ¶ 6 & Ex. A; Evid. Code, §§ 720, 801.)

The Court does not adopt Plaintiff's separate-statement characterization that the condition was a "foreseeable dangerous condition." (RSSUMF, Additional Fact No. 19.) The Court does not rely on Oandasan's opinions concerning code violations or repair costs. (Oandasan Decl., ¶¶ 7–9.)

DISCUSSION

Undisputed Material Facts

The following facts are undisputed for purposes of this motion. On June 3, 2020, between 11:00 a.m. and 12:30 p.m., Plaintiff was at the church premises volunteering for Defendants. (SSUMF No. 2; RSSUMF No. 2.) The premises contained a parking lot with two asphalt driveway access points to and from Owensmouth Avenue. (SSUMF No. 8; RSSUMF No. 8.) Plaintiff set up cones to designate the driving lanes and then directed traffic with a stop sign on Owensmouth Avenue. (SSUMF No. 5; RSSUMF No. 5.) Fellow volunteer Ryan Roberts received cars at the second Owensmouth Avenue entrance, while Plaintiff was stationed at the first entrance as cars exited. (SSUMF No. 14; RSSUMF No. 14.)

In front of the property and running along Owensmouth Avenue was a sidewalk with an adjacent planter. (SSUMF No. 9; RSSUMF No. 9.) The sidewalk was in front of the planter and between the two driveways. (SSUMF No. 12; RSSUMF No. 12.) The planter contained trees, rocks, dirt, sprinklers, and other vegetation. (SSUMF No. 10; RSSUMF No. 10.) A wall approximately two to three feet tall separated the parking lot from the planter. (SSUMF No. 11; RSSUMF No. 11.) The planter was an inch or two lower than the sidewalk. (SSUMF No. 24; RSSUMF No. 24.)

Plaintiff observed Roberts throwing bottles into a trash bag. (SSUMF No. 16; RSSUMF No. 16.) Plaintiff testified that the bag was hanging on the right side of the blue sign at the leftmost edge of the wall. (SSUMF No. 19; RSSUMF No. 19.) The incident occurred when Plaintiff was picking up empty water bottles from the gutter along Owensmouth Avenue and attempted to put them in the bag hanging from the blue sign. (SSUMF No. 20; RSSUMF No. 20.)

Plaintiff approached the trash bag from the sidewalk through the dirt area of the planter and tripped over a sprinkler and/or its rebar support located in the planter. (SSUMF No. 21; RSSUMF No. 21.) He was aware that he was walking from the sidewalk into the dirt planter. (SSUMF No. 23; RSSUMF No. 23.) He was not looking at his feet when he tripped. (SSUMF No. 26; RSSUMF No. 26.) He fell and hit the asphalt adjacent to the planter. (SSUMF No. 27; RSSUMF No. 27.) Plaintiff testified that he had no difficulty seeing the sprinkler head or rebar after the accident. (SSUMF No. 28; RSSUMF No. 28.)

Plaintiff acknowledged that he could have taken a different route to reach the bag hanging on the blue sign. (SSUMF No. 29; RSSUMF No. 29.) He chose not to walk to the left of the planter and access the bag from the asphalt because the planter was a quicker and more direct pathway. (SSUMF No. 30; RSSUMF No. 30.)

Duty

“The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158 (Kesner).) Premises liability “is grounded in the possession of the premises and the attendant right to control and manage the premises.” (Ibid.) “[M]ere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” (Ibid., internal quotation marks omitted.) The duty arising from possession and control is adherence to “the same standard of care that applies in negligence cases.” (Id. at pp. 1158–1159.)

A categorical departure from the ordinary duty imposed by Civil Code section 1714 requires consideration of foreseeability and public policy “at a relatively broad level of factual generality.” (Cabral v. Ralphs Grocery Co. (2011) 51 Cal.4th 764, 772 (Cabral).) Once a duty of ordinary care exists, however, the jury “may consider the likelihood or foreseeability of injury in determining whether, in fact, the particular defendant’s conduct was negligent in the first place.” (Id. at p. 773.) A Court may resolve that fact-specific question as a matter of law where “no reasonable jury could find the defendant failed to act with reasonable prudence under the circumstances.” (Ibid.)

Here, Defendants contend that “[t]he Exposed Sprinkler Above the Ground Were Not a Dangerous Condition and Therefore Defendants Owed No Duty to Plaintiff.” (Motion, p. 8.) They argue that Plaintiff left an available paved sidewalk and entered a landscaped planter containing dirt, rocks, vegetation, sprinklers, and other objects even though another route was available. (Motion, pp. 9–11.) According to Defendants, walking through the planter was not reasonably foreseeable, and the sprinkler and adjoining rebar therefore were not a dangerous condition. (Motion, pp. 10–11.)

Defendants do not seek summary judgment on the ground that either Defendant lacked ownership, possession, or control of the premises. (Motion, p. 3.) To the extent Defendants seek a categorical no-duty determination based on Plaintiff’s entry into the planter, they do not identify a categorical exception to the ordinary premises duty applicable whenever a person leaves a designated walkway and enters an adjoining landscaped area. Their argument instead depends on the particular circumstances of Plaintiff’s route. Those accident-specific circumstances do not themselves establish a categorical no-duty exception. (Cabral, *supra*, 51 Cal.4th at pp. 771–773.)

At the broader level of factual generality required in determining duty, the general character of the alleged harm is a pedestrian entering landscaping immediately adjoining a sidewalk and tripping over projecting irrigation equipment. That risk of harm is not so extraordinary or unforeseeable as to eliminate the ordinary premises duty of reasonable care. (See *Rosenberg v. Goldstein* (1966) 247 Cal.App.2d 25, 27–30; *Low v. City of Sacramento* (1970) 7 Cal.App.3d 826, 833; see also *Jones v. Deeter* (1984) 152 Cal.App.3d 798, 804, fn. 2.)

Defendants principally derive their foreseeable-use standard from public-property decisions, including *Mathews v. City of Cerritos* (1992) 2 Cal.App.4th 1380, *Akins v. County of Sonoma* (1967) 67 Cal.2d 185, *Constance B. v. State of California* (1986) 178 Cal.App.3d 200, and *Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559. (Motion, pp. 8–10.) The statutory requirements governing dangerous conditions of public property do not displace the ordinary-care standard governing these private Defendants. Foreseeability nevertheless remains relevant to whether Defendants acted negligently under the particular circumstances. (Cabral, *supra*, 51 Cal.4th at p. 773.) Even under the public-property standard, “[r]easonably foreseeable use with due care, as an element in defining whether property is in a dangerous condition, refers to use by the public generally, not the

contributory negligence of the particular plaintiff who comes before the court.” (Mathews, *supra*, 2 Cal.App.4th at p. 1384.)

Defendants argue that the planter “did not lead to any particular area” and that crossing it “only takes one several feet to a wall.” (Motion, p. 10.) Their own evidence shows that Plaintiff observed another volunteer placing bottles into a trash bag. (SSUMF No. 16; RSSUMF No. 16.) The bag hung from the blue sign on the wall adjoining the planter. (SSUMF No. 19; RSSUMF No. 19.) Plaintiff was attempting to place bottles into that bag when he approached through the planter and tripped over the sprinkler and/or adjoining rebar. (SSUMF Nos. 20–21; RSSUMF Nos. 20–21.) The bag's location and use during cleanup support a reasonable inference that persons performing cleanup activities at the premises might approach it through the planter from the sidewalk. (SSUMF Nos. 16, 19–21; RSSUMF Nos. 16, 19–21.) The Court may not choose between competing reasonable inferences on summary judgment. (Aguilar, *supra*, 25 Cal.4th at p. 856.)

Plaintiff acknowledges that another route was available and that he chose the planter because it was quicker and more direct. (SSUMF Nos. 29–30; RSSUMF Nos. 29–30.) Those facts establish that the planter was not his only means of access, but they do not negate the reasonable inference of foreseeable entry arising from the cleanup activity and the bag's location. (SSUMF Nos. 16, 19–21, 29–30; RSSUMF Nos. 16, 19–21, 29–30.) Defendants' moving evidence therefore does not establish their asserted premise that pedestrian entry into the planter was unforeseeable as a matter of law.

Defendants have not met their initial burden on this ground. Their evidence does not establish a categorical exception to the ordinary premises duty based on Plaintiff's entry into the planter. Because Defendants expressly disclaim summary judgment based on breach, the Court does not determine whether Defendants exercised reasonable care in maintaining the sprinkler and adjoining rebar under the particular circumstances. The burden does not shift to Plaintiff on this ground. (Code Civ. Proc., § 437c, subd. (p)(2).)

Open and Obvious

Defendants separately contend that the sprinkler and adjoining rebar were open and obvious. (Motion, pp. 13–14.)

“Foreseeability of harm is typically absent when a dangerous

condition is open and obvious.” (Montes v. Young Men’s Christian Assn. of Glendale, California (2022) 81 Cal.App.5th 1134, 1140 (Montes).)

“Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (Ibid.)

“[O]bvious dangers are obvious to most, but are not obvious to absolutely everyone. The obvious danger rule is an objective test, and the courts do not inquire into the user’s subjective knowledge in such a case.” (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 71.)

An open and obvious condition may nevertheless give rise to a duty where “it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it).” (Montes, *supra*, 81 Cal.App.5th at p. 1140.) Thus, “the obviousness of the condition and its dangerousness . . . will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.” (Ibid., italics omitted.)

“Summary judgment cannot be based on photographs where the reviewing court concludes either reasonable minds might differ regarding whether the photographs correctly depict the alleged defect and the surrounding environs or whether the photographs conclusively establish the defect was open and obvious.” (Kasparian v. AvalonBay Communities, Inc. (2007) 156 Cal.App.4th 11, 15 (Kasparian).) Relevant considerations include “the photograph’s subject (i.e., its focal point),” “the view of the subject (e.g., close-up, distant, isolated, in context),” and “the photograph’s perspective (e.g., eye-level, overhead, ground-level).” (Id. at pp. 24–25.)

Here, Defendants submit an authenticated photograph depicting the sprinkler and adjoining rebar within the planter. (Austin Decl., Ex. C.) Plaintiff acknowledged that the photograph fairly and accurately depicted the accident scene, apart from the missing trash bag. (Caouette Depo., vol. 1, 128:18–129:3.) The photograph is sufficient, if uncontradicted, to make a prima facie showing that the projecting installation was objectively apparent as a tripping obstruction. Defendants therefore have met their initial burden, and the burden shifts to Plaintiff. (Aguilar, *supra*, 25 Cal.4th at p. 850.)

Plaintiff has raised a triable issue. He testified that he

“tripped over the rebar there by the sprinkler” and agreed that the rebar was “slightly shorter than the sprinkler head.” (Caouette Depo., vol. 1, 147:14–25.) Plaintiff’s Compendium reproduces Defendants’ broader accident-scene photograph and also contains closer views of the sprinkler and adjoining rebar. (Plaintiff’s Compendium, Ex. 4, PDF pp. 159–163.)

Applying Kasparian, the broader photograph depicts the installation in context within the landscaped planter, where the sprinkler and adjoining rebar occupy a relatively small portion of the scene. (Plaintiff’s Compendium, Ex. 4, PDF p. 159.) The closer views center the camera on the projections from a shorter distance and downward-facing perspective. (Id., PDF pp. 160–162.) Those views show a thin brown rebar immediately adjacent to the comparatively conspicuous white sprinkler riser and black cap. Although both objects are discernible in the closer photographs, the rebar is substantially thinner and less visually distinct against the surrounding dirt and plant debris. (Ibid.) Considering the photographs’ focal points, distance, context, and perspective, reasonable minds could differ as to whether the installation adequately disclosed the adjoining tripping danger to a pedestrian approaching the area. (Kasparian, *supra*, 156 Cal.App.4th at pp. 24–25.)

Oandasan’s limited opinion provides additional evidence on that issue. He states that “[t]he sprinkler has a white pipe and black head and the rebar is a brown color” and that “[t]he tripping hazard presented by the rebar is greater because of the lack of contrast between the brown rebar and the brown dirt in the planter.” (Oandasan Decl., ¶ 6.)

In *Jones v. Awad* (2019) 39 Cal.App.5th 1200, the plaintiff alleged that the injury-producing condition was an unexpected two-and-one-half to three-inch difference in step height, rather than the step generally. (Id. at p. 1208.) The Court explained: “While the existence of the step itself was open and obvious, the indistinct change in elevation between each step would not have been apparent to an individual stepping down.” (Ibid.) The Court therefore concluded that the open and obvious exception “does not relieve defendants of their duty of care.” (Ibid.) Here, the visibility of the planter and sprinkler likewise does not by itself establish that the adjoining rebar made the injury-producing tripping danger objectively obvious.

In reply, Defendants argue that, “even if the rebar was not as noticeable as the sprinkler,” “in avoiding the sprinkler, one would also be

avoiding the rebar, which is connected to or less than an inch from the sprinkler.” (Reply, p. 10.) The photographs support Defendants’ inference that the conspicuous sprinkler adequately warned of the combined obstruction. (Plaintiff’s Compendium, Ex. 4, PDF pp. 160–161.) The closer photographs and contrast evidence also permit the contrary inference that the adjoining rebar was not sufficiently apparent for the sprinkler to disclose the full tripping danger presented by the installation. (Plaintiff’s Compendium, Ex. 4, PDF pp. 160–161; Oandasan Decl., ¶ 6.) Whether the installation, viewed as a whole, was sufficiently apparent to serve as its own warning therefore presents a triable issue. The Court may not “weigh the plaintiff’s evidence or inferences against the defendants’ as though it were sitting as the trier of fact.” (Aguilar, *supra*, 25 Cal.4th at p. 856.)

Separately, Plaintiff’s failure to look at his feet when he tripped concerns his own conduct and does not establish whether the condition was objectively obvious. (SSUMF No. 26; RSSUMF No. 26.) And further, Plaintiff’s ability to identify the sprinkler and rebar after looking for the cause of his fall likewise does not conclusively establish how the installation would have appeared to a reasonable pedestrian approaching beforehand. (Caouette Depo., vol. 1, 161:24–162:7.) “The obvious danger rule is an objective test, and the courts do not inquire into the user’s subjective knowledge in such a case.” (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 71.)

Plaintiff’s admission that another route was available likewise does not resolve the disputed obviousness of the condition. (SSUMF Nos. 29–30; RSSUMF Nos. 29–30.) In *Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, the Court first concluded that “the dangerous condition was open and obvious to Nicoletti, and Dolphin had no duty to warn.” (Id. at p. 146.) It then addressed necessity and the availability of other entrances. (Id. at p. 147.) Because a triable issue remains as to the predicate question of objective obviousness here, the Court need not decide whether the necessity or other-circumstances exception applies.

Viewing the evidence in the light most favorable Plaintiff, Plaintiff has met his responsive burden by raising a triable issue of material fact as to whether the sprinkler and adjoining rebar presented an objectively obvious tripping obstruction. Defendants are therefore not entitled to summary judgment on this ground.

CONCLUSION

Defendants' Motion for Summary Judgment is DENIED.